

SHIONOGI INC. v. ZYDUS PHARMACEUTICALS (USA) INC. et al

Plaintiff:	SHIONOGI INC.
Defendant:	ZYDUS PHARMACEUTICALS (USA) INC., ZYDUS LIFESCIENCES LIMITED and ZYDUS LIFESCIENCES GLOBAL FZE
Case Number:	2:2026cv06619
Filed:	June 5, 2026
Court:	U.S. District Court for the District of New Jersey
Presiding Judge:	Jennifer Choe-Groves (CIT)
Referring Judge:	Leda D Wettre
Nature of Suit:	Patent - Abbreviated New Drug Application(ANDA)
Cause of Action:	35 U.S.C. § 145 Patent Infringement
Jury Demanded By:	None

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Docket Report

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Date Filed	Document Text
July 22, 2026	Filing 9 WAIVER OF SERVICE Returned Executed by SHIONOGI INC.. ZYDUS PHARMACEUTICALS (USA) INC. waiver sent on 7/16/2026, answer due 9/14/2026. (DENI, WILLIAM)
July 22, 2026	Filing 8 WAIVER OF SERVICE Returned Executed by SHIONOGI INC.. ZYDUS LIFESCIENCES LIMITED waiver sent on 7/16/2026, answer due 10/14/2026. (DENI, WILLIAM)
July 22, 2026	Filing 7 WAIVER OF SERVICE Returned Executed by SHIONOGI INC.. ZYDUS LIFESCIENCES GLOBAL FZE waiver sent on 7/16/2026, answer due 10/14/2026. (DENI, WILLIAM)

Date Filed	Document Text
July 8, 2026	Filing 6 NOTICE of Appearance by STEPHEN R. DONAT on behalf of SHIONOGI INC. (DONAT, STEPHEN)
June 15, 2026	Filing 5 SUMMONS ISSUED as to ZYDUS LIFESCIENCES GLOBAL FZE, ZYDUS LIFESCIENCES LIMITED, ZYDUS PHARMACEUTICALS (USA) INC.. Attached is the official court Summons, please fill out Defendant and Plaintiffs attorney information and serve. (mj)
June 15, 2026	Filing 4 AO120 Patent Form filed. (Attachments: #1 See attached Complaint and Exhibits) (mj) (Attachment 1 replaced on 6/16/2026) (mj,).
June 15, 2026	Case Assigned to Judge Jennifer Choe-Groves (CIT) and Magistrate Judge Leda D. Wettre. (mfr)
June 8, 2026	Filing 3 Exhibit to #1 Complaint, Exhibits A, B and C by SHIONOGI INC.. (Attachments: #1 Exhibit, #2 Exhibit)(DENI, WILLIAM)
June 5, 2026	Filing 2 Corporate Disclosure Statement by SHIONOGI INC. identifying SHIONOGI & CO., LTD. as Corporate Parent.. (DENI, WILLIAM)
June 5, 2026	Filing 1 COMPLAINT against ZYDUS LIFESCIENCES GLOBAL FZE, ZYDUS LIFESCIENCES LIMITED, ZYDUS PHARMACEUTICALS (USA) INC. (Filing and Admin fee \$ 405 receipt number ANJDC-17510421) , Related Case Selected, filed by SHIONOGI INC.. (Attachments: #1 Civil Cover Sheet, #2 Certification Pursuant to Local Civil Rules 11.2 and 40.1)(DENI, WILLIAM)

I. Executive Summary and Procedural Information

Parties & Counsel:

Plaintiff: Shionogi Inc. (Delaware)

Defendant: Zydus Pharmaceuticals (USA) Inc. (New Jersey); Zydus Lifesciences Limited (India); Zydus Lifesciences Global FZE (United Arab Emirates)

Plaintiff's Counsel: [FBT Gibbons LLP](#)

Case Identification: Shionogi Inc. v. Zydus Pharmaceuticals (USA) Inc., [2:26-cv-06619](#), D.N.J., 06/05/2026

Venue Allegations: Venue is alleged to be proper in the District of New Jersey because Defendant Zydus USA has a regular and established place of business in the district, and the foreign defendants may be sued in any judicial district.

Core Dispute: Plaintiff alleges that Defendants' submission of an Abbreviated New Drug Application (ANDA) to the FDA for a generic version of RADICAVA ORS® constitutes an act of infringement of three U.S. patents covering oral formulations of edaravone and methods of their administration.

Technical Context: The technology relates to oral pharmaceutical compositions of edaravone for the treatment of Amyotrophic Lateral Sclerosis (ALS), specifically addressing how to administer the drug in relation to food consumption to ensure consistent and effective absorption.

Key Procedural History: This action arises under the Hatch-Waxman Act, triggered by Defendants' submission of ANDA No. 220849 seeking to market a generic version of Plaintiff's drug, RADICAVA ORS®, prior to the expiration of patents listed in the FDA's Orange Book. The complaint notes that Plaintiff recently acquired the RADICAVA ORS® assets from Tanabe Pharma Corporation and that numerous related patent infringement actions against other generic manufacturers are pending in the same district.

Case Timeline

Date	Event
2020-11-12	Earliest Priority Date for '611 , '769 , and '469 Patents
2022-05-12	FDA Approval of RADICAVA ORS® (NDA No. 215446)
2022-08-05	Zydus USA submits FOIA request for RADICAVA ORS® approval summary
2024-03-28	FDA grants Orphan Drug Exclusivity for RADICAVA ORS®
2025-11-25	U.S. Patent No. 12,478,611 Issues
2025-12-22	Shionogi announces agreement to acquire RADICAVA ORS® business
2026-01-20	U.S. Patent No. 12,527,769 Issues
2026-03-10	U.S. Patent No. 12,569,469 Issues
2026-04-01	Shionogi completes acquisition of RADICAVA ORS® assets
2026-04-21	Date of Zydus's Notice Letter regarding ANDA No. 220849
2026-06-05	Complaint for Patent Infringement Filed
2029-05-12	RADICAVA ORS® Orphan Drug Exclusivity Expires

II. Technology and Patent(s)-in-Suit Analysis

U.S. Patent No. 12,478,611

Patent Identification: U.S. Patent No. 12,478,611, "Pharmaceutical composition for oral administration of edaravone and method of administering same," issued November 25, 2025.

The Invention Explained

Problem Addressed: The patent addresses the challenge that the oral absorption of edaravone, an active ingredient for treating ALS, is significantly affected by food consumption (the "food effect") '611 Patent, col. 3:8-13 Prior to this invention, edaravone was only available as an injectable agent, which is burdensome for ALS patients '611 Patent, col. 1:56-61

The Patented Solution: The patent discloses a method for administering an oral edaravone composition by specifying distinct time intervals between meal consumption and drug administration, tailored to the type of meal (high-fat, standard, or light) '611 Patent, abstract This method is designed to avoid the food effect and achieve a pharmacokinetic (PK) profile (i.e., Cmax and AUC) comparable to that achieved under fasting conditions, thereby ensuring consistent drug efficacy '611 Patent, col. 2:1-22

Technical Importance: This method provides a predictable dosing regimen that enables the convenient oral administration of edaravone, improving the quality of life for ALS patients by replacing burdensome intravenous infusions while maintaining therapeutic consistency.

Key Claims at a Glance

- The complaint asserts at least Independent Claim 1 Compl. ¶49
- Independent Claim 1 of the '611 patent is a method claim for treating amyotrophic lateral sclerosis, which includes the following essential elements:
 - Orally or intragastrically administering a liquid pharmaceutical composition comprising edaravone at a dose of 90 to 120 mg.
 - Administering with a "first time interval" from the consumption of a meal to the drug administration.
 - The interval is specified based on meal type: 8 hours for a high-fat meal (800-1000 calories, 50% fat), 4 hours for a standard meal (400-500 calories, 25% fat), and 2 hours for a light meal (250 calories).
 - This administration protocol "achieves the same pharmacokinetics as administration... under a fasting condition of 10 hours or longer," where "the same pharmacokinetics includes Cmax and AUC."

U.S. Patent No. 12,527,769

Patent Identification: U.S. Patent No. 12,527,769, "Pharmaceutical composition for oral administration of edaravone and method of administering same," issued January 20, 2026.

The Invention Explained

❑ **Problem Addressed:** Like the '611 patent, the '769 patent addresses the negative impact of food on the oral absorption and bioavailability of edaravone, which can lead to sub-therapeutic drug levels if not properly managed '769 Patent, col. 16:39-44

❑ **The Patented Solution:** The patent claims a method of administering a specific formulation—a liquid suspension of edaravone—using timed intervals relative to meals '769 Patent, claim 1 The claim defines the successful outcome of this method with explicit functional language: the administration results in a decrease in maximum concentration (C_{max}) of less than 20% and/or a decrease in total drug exposure (AUC) of less than 10% compared to administration in a fasted state '769 Patent, claim 1

❑ **Technical Importance:** By claiming a method tied to a specific formulation type (suspension) and defined by a specific, quantifiable PK outcome, the patent provides a durable and enforceable solution to making oral edaravone a viable therapeutic alternative to IV administration.

Key Claims at a Glance

❑ The complaint asserts at least Independent Claim 1 Compl. ¶60

❑ Independent Claim 1 of the '769 patent is a method claim for treating amyotrophic lateral sclerosis, which includes the following essential elements:

❑ Orally or intragastrically administering a liquid pharmaceutical composition that is a suspension comprising edaravone.

❑ The administration occurs after a specific time interval following a meal: 8 hours for a high-fat meal, 4 hours for a low-fat meal, or 2 hours for a caloric supplement.

❑ The method results in a specific pharmacokinetic outcome: "a decrease in C_{max} is less than 20% with respect to C_{max} in a same time range in fasting for 10 hours or longer and/or that a decrease in AUC is less than 10% with respect to AUC in a same time range in fasting for 10 hours or longer."

U.S. Patent No. 12,569,469

❑ **Patent Identification:** U.S. Patent No. 12,569,469, "Pharmaceutical composition for oral administration of edaravone and method of administering same," issued March 10, 2026.

Technology Synopsis

The '469 patent addresses the food effect on oral edaravone by claiming a method of administration that specifies a "first time interval" between a meal and drug intake, as well as a "second time interval" between drug intake and the next meal '469 Patent, claim 2 This two-part timing regimen is designed to ensure consistent drug absorption similar to fasting conditions for a liquid pharmaceutical composition used to treat ALS '469 Patent, claim 1

Asserted Claims

The complaint asserts at least Independent Claim 1 Compl. ¶71

Accused Features

The accused features are Defendants' proposed generic edaravone oral suspension and its associated product labeling, which are alleged to instruct or encourage administration in a manner that would perform the claimed method Compl. ¶72

III. The Accused Instrumentality

Product Identification

□ Defendants' proposed edaravone oral suspension, which is the subject of ANDA No. 220849 submitted to the FDA (Compl. ¶¶2; Compl. ¶20).

Functionality and Market Context

□ The accused product is a liquid oral suspension of edaravone with a proposed concentration of 105 mg/5 mL Compl. ¶42 It is intended to be a generic equivalent to Plaintiff's RADICAVA ORS®, which is an approved treatment for ALS that improves upon the prior, burdensome intravenous formulation Compl. ¶¶11-12 Compl. ¶43 The complaint alleges that upon approval, Defendants will manufacture and sell this product for the same therapeutic use, thereby competing directly with RADICAVA ORS® (Compl. ¶¶22; Compl. ¶27).

IV. Analysis of Infringement Allegations

The complaint alleges infringement under 35 U.S.C. § 271(e)(2), where the filing of an ANDA for a generic version of a patented drug is a statutory act of infringement. The infringement theory is that the administration of Defendants' proposed generic product, in accordance with its proposed labeling, will directly infringe the asserted method claims.

No probative visual evidence provided in complaint.

'611 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating amyotrophic lateral sclerosis, comprising: orally or intragastrically administering, to a subject in need thereof, a liquid pharmaceutical composition comprising edaravone...	Defendants' ANDA product is a liquid oral suspension of edaravone ¶42; ¶44 intended for treating ALS.		col. 11:15-18
...with a first time interval from a consumption of a meal by the subject in need thereof to an administration of the liquid pharmaceutical composition...	The proposed product labeling is alleged to instruct or encourage administration with specific time intervals relative to meals.	¶50	col. 2:2-9
...the first time interval for the	The proposed labeling is alleged to	¶50	col. 7:46-

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
consumption of a high-fat meal... is 8 hours... the first time interval for the consumption of a standard meal... is 4 hours... and the first time interval for the consumption of a light meal... is 2 hours...	instruct these specific meal-dependent timing protocols, thereby inducing infringement by users.		8:65

...a dose of edaravone per administration is in a range of 90 to 120 mg...	The proposed product has a dose concentration of 105 mg/5 mL, which falls within the claimed dosage range.	¶42	col. 12:59-65
...such that the first time interval achieves the same pharmacokinetics as administration of the liquid pharmaceutical composition by the same method to the subject under a fasting condition of 10 hours or longer...	As a generic equivalent seeking approval based on the RLD's data, Defendants' product must be bioequivalent, and is therefore alleged to achieve the same PK profile as the patented method.	¶49	col. 6:1-20

'769 Patent Infringement Allegations

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
A method of treating amyotrophic lateral sclerosis, comprising: orally or intragastrically administering, to a subject in need thereof, a liquid pharmaceutical composition comprising edaravone... wherein the liquid pharmaceutical composition is a suspension...	Defendants' ANDA product is identified as a proposed "edaravone suspension."	¶42	col. 5:7-10
...with a first time interval for the consumption of a high-fat meal... is 8 hours..., the first time interval for the	The proposed product labeling is alleged to instruct or encourage administration using these specific	¶61	col. 17:1-6

Claim Element (from Independent Claim 1)	Alleged Infringing Functionality	Complaint Citation	Patent Citation
consumption of a low-fat meal... is 4 hours..., or the first time interval for the consumption of a caloric supplement... is 2 hours...	meal-dependent time intervals.		
...such that a decrease in Cmax is less than 20% with respect to Cmax in a same time range in fasting for 10 hours or longer and/or that a decrease in AUC is less than 10% with respect to AUC in a same time range in fasting for 10 hours or longer.	Because the accused product must be bioequivalent to RADICAVA ORS® to gain FDA approval, it is alleged that it will necessarily exhibit the claimed pharmacokinetic outcomes, which are based on the clinical studies for RADICAVA ORS®.	¶60	col. 15:45-18:44; Table 3

Identified Points of Contention:

Scope Questions: A central dispute may arise over the definitions of "high-fat meal," "standard meal," and "light meal." The patents provide specific caloric and fat-percentage definitions '611 Patent, col. 7:37-8:15 The infringement analysis will depend on whether the proposed label for the generic product uses language that falls squarely within these definitions.

Technical Questions: For the '611 patent, a question is whether "the same pharmacokinetics" requires literal identity or if it can be satisfied by meeting regulatory standards for bioequivalence. For the '769 patent, a key question will be whether Defendants' product, even if bioequivalent, can be proven to meet the specific percentage-based Cmax and AUC limitations recited in the claim across all patient populations and meal conditions.

V. Key Claim Terms for Construction

The Term: "achieves the same pharmacokinetics" (from '611 Patent, Claim 1)

Context and Importance: This functional limitation is the core of Claim 1 of the '611 patent. Its definition will determine the standard of proof for infringement. Practitioners may focus on this term because its interpretation-whether it means regulatory bioequivalence or something stricter-could decide the outcome of the infringement analysis.

Intrinsic Evidence for Interpretation:

Evidence for a Broader Interpretation: The specification suggests a bioequivalence standard, stating that "'the same pharmacokinetics' means... statistically the same level to common criteria for bioequivalence (e.g., a least squares mean ratio and its 90% confidence interval are in the range of 0.8 to 1.25)" '611 Patent, col. 6:10-20 This supports interpreting the term through the lens of established regulatory standards.

Evidence for a Narrower Interpretation: A defendant may argue that the plain meaning of "the same" requires a higher degree of similarity than the flexible 80-125% bioequivalence

range. They might also point to the specific mean values in the patent's clinical study data '611 Patent, Table 2; FIG. 1 as the standard for what "the same" PK profile entails, arguing for a narrower, data-driven interpretation.

❑ **The Term:** "suspension" (from '769 Patent, Claim 1)

❑ **Context and Importance:** This term narrows the asserted claim to a specific type of formulation. Infringement requires that the accused product be a "suspension." Practitioners may focus on this term to see if any formulation differences in the accused product could be leveraged for a non-infringement argument.

❑ **Intrinsic Evidence for Interpretation:**

❑ **Evidence for a Broader Interpretation:** The specification describes suspensions in general terms, including "edaravone particles, a dispersing agent and water" '769 Patent, col. 5:7-9 This broad description could encompass any formulation where edaravone is not fully dissolved.

❑ **Evidence for a Narrower Interpretation:** The patent provides a highly detailed example of a preferred suspension, including specific excipients like polyvinyl alcohol as a dispersing agent and xanthan gum as a thickening agent '769 Patent, col. 15:1-17 A defendant could argue that a "suspension" within the meaning of the patent requires specific functional properties (e.g., stability, redispersibility) taught in connection with these exemplary excipients, and a formulation lacking them is not what was claimed.

VI. Other Allegations

❑ **Indirect Infringement:** The complaint alleges active inducement of infringement under 35 U.S.C. § 271(b). The factual basis is that Defendants' proposed product labeling will allegedly instruct and encourage physicians, pharmacists, and patients to administer the generic product according to the patented methods (Compl. ¶¶50; Compl. ¶61; Compl. ¶72).

❑ **Willful Infringement:** The complaint alleges willful infringement based on Defendants' knowledge of the patents-in-suit. It is alleged that Defendants were aware of the patents prior to amending their ANDA to include a Paragraph IV certification and proceeded with their application despite an "objectively high likelihood" of infringement (Compl. ¶¶54; Compl. ¶65; Compl. ¶76). This alleges pre-suit knowledge and a deliberate disregard for Plaintiff's patent rights.

VII. Analyst's Conclusion: Key Questions for the Case

1.A core issue will be one of **definitional scope:** can the functional claim language, such as "achieves the same pharmacokinetics" in the '611 patent and the specific PK percentage decreases in the '769 patent, be met by simply showing regulatory bioequivalence, or will the court require a stricter, more literal proof of identity tied to the patent's specific examples?

2.A second central question will relate to **induced infringement:** will the language in Defendants' proposed product label be found to provide a clear "instruction" or "encouragement" to perform the patented methods, or will it be deemed sufficiently ambiguous or different from the patents' specific meal-and-timing recitations to allow for non-infringing uses?

3.An underlying evidentiary battle will likely focus on **bioequivalence versus claimed function:** does the fact that Defendants' product is intended to be bioequivalent to RADICAVA ORS® automatically mean it infringes the functional limitations of the patents, or can

Defendants introduce evidence that its specific formulation, while bioequivalent overall, does not meet the precise Cmax and AUC parameters required by the claims under all specified meal conditions?

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UNITED STATES DISTRICT COURT

DISTRICT OF NEW JERSEY

SHIONOGI INC.,

Plaintiff,

v.

ZYDUS PHARMACEUTICALS (USA) INC.,

ZYDUS LIFESCIENCES LIMITED, and

ZYDUS LIFESCIENCES GLOBAL FZE,

Defendants.

COMPLAINT FOR PATENT INFRINGEMENT

Plaintiff Shionogi Inc. (“Shionogi” or “Plaintiff”), by its undersigned attorneys, brings this action for patent infringement against Defendants Zydus Pharmaceuticals (USA) Inc. (“Zydus USA”), Zydus Lifesciences Limited (“Zydus Lifesciences”), and Zydus Lifesciences Global FZE (“Zydus Global FZE”), (collectively, “Zydus” or “Defendants”), and hereby alleges, on knowledge as to its own actions, and on information and belief as to all other matters, as follows:

Civil Action No.

26-6619

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NATURE OF THE CASE

1.

This is an action for infringement by Defendants, under the Patent Laws of the United States, 35 U.S.C. §§ 1 et seq., of Shionogi's United States Patent Nos. 12,478,611 ("the '611 patent"), 12,527,769 ("the '769 patent"), and 12,569,469 ("the '469 patent") (the "Patents-in-Suit"), under the United States Patent Laws, 35 U.S.C. §§ 100 et seq., the Federal Food, Drug, and Cosmetic Act, 21 U.S.C. §§ 301 et seq., and as well as the Declaratory Judgment Act, 28 U.S.C. §§ 2201-2202.

2.

This action arises from Defendants' submission to the United States Food and Drug Administration ("FDA") of Abbreviated New Drug Application ("ANDA") No. 220849, seeking approval to engage in the commercial manufacture, use, sale, offer for sale and/or importation of its pharmaceutical products before the expiration of the Patents-in-Suit, which is listed in the FDA's publication, Approved Drug Products with Therapeutic Equivalence Evaluations, (the FDA's "Orange Book") for RADICAVA ORS®.

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3.

There are several related patent infringement actions, involving the same drug RADICAVA ORS® and certain of the same patents, pending in this District. See *In re Radicava ORS*, Case No. 2:25-cv-03326 (D.N.J.) (filed Apr. 25, 2025); *Tanabe Pharma Corp. v. Sandoz Inc.*, Case No. 2:25-cv-16664 (D.N.J.) (filed Oct. 15, 2025); *Tanabe Pharma Corp. v. Cipla USA, Inc., et al.*, Case No. 2:25-cv-16677 (D.N.J.) (filed Oct. 16, 2025); *Tanabe Pharma Corp. v. Apotex Inc., et al.*, Case No. 2:25-cv-16679 (D.N.J.) (filed Oct. 16, 2025); *Tanabe Pharma Corp. v. Lupin Ltd., et al.*, Case No. 2:25-cv-16680 (D.N.J.) (filed Oct. 16, 2025); *Mitsubishi Tanabe Pharma Corp. v. Zydus Pharmaceuticals (USA) Inc. et al.*, Case No. 2:25-cv-18032 (D.N.J.) (filed Nov. 29, 2025); *Tanabe Pharma Corp. v. Azurity Pharmaceuticals, Inc. et al.*, Case No. 2:26-cv-00559 (D.N.J.) (filed Jan. 16, 2026); *Tanabe Pharma Corp. v. Cipla USA, Inc., et al.*, Case No. 2:26-cv-01734 (D.N.J.) (filed Feb. 20, 2025); *Shionogi Inc. v. Lupin Ltd., et al.*, Case No. 2:26-cv-03893

(D.N.J.) (filed Apr. 13, 2026); Shionogi Inc. v. Lupin Ltd., et al., Case No. 2:26-cv-06218 (D.N.J.) (filed May 28, 2026).

4.

As publicly announced on December 22, 2025, Shionogi entered into an agreement to acquire the global RADICAVA ORS® business from Tanabe Pharma Corporation (“TPC”) (formerly known as Mitsubishi Tanabe Pharma Corporation (“MTPC”). As of April 1, 2026, Shionogi acquired ownership and control of the RADICAVA ORS® assets in the United States, including the NDA for RADICAVA ORS® and its Orange Book-listed patents.

5.

Pursuant to this transfer of ownership, TPC intends to file motions pursuant to Federal Rule of Civil Procedure 25(c) to address the transfer of interest and to substitute Shionogi as the appropriate Plaintiff.

AMYOTROPHIC LATERAL SCLEROSIS

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6.

Amyotrophic lateral sclerosis (“ALS”), also known as Lou Gehrig’s disease, is a devastating and fatal neurodegenerative disease that causes motor neurons – nerve cells in the brain and spinal cord – to progressively decay and die. When this happens, the brain’s ability to control muscle movement is progressively lost as the patient loses the ability to speak, eat, move and eventually breathe. The underlying causes of ALS are not known. Once diagnosed with ALS patients, on average, die within 3 to 5 years from when symptoms first appear, although their quality of life deteriorates substantially throughout their few remaining years. However, in patients diagnosed much later, the survival window is even shorter – often within months. There is no cure for ALS.¹

7.

The care of an ALS patient is burdensome, requiring a team of medical professionals, specialized equipment, and constant attention of a caregiver. Caregivers are often relatives who have forgone their occupations in order to care for the daily activities of the ALS patient. The demands of caregiving for an ALS patient take a toll on the health and finances of their caregivers as well. Of the neurodegenerative diseases, ALS is considered one of the most expensive and burdensome, imposing significant direct and indirect costs on the ALS patient, the

caregivers, medical professionals, and the healthcare industry.

8.

Since 1980, although over one hundred (100+) clinical trials with various compounds have been conducted and published, only four active pharmaceutical ingredients (“APIs”) have been approved by the FDA for the treatment of ALS. RELYVRIO®, a drug using one of those APIs, was subsequently withdrawn from the market due to a failed clinical study.

1 Information in this paragraph is sourced from www.als.org and the National Institute of Health’s “Amyotrophic Lateral Sclerosis fact sheet” (January 2017), available from https://www.ninds.nih.gov/sites/default/files/migrate-documents/ALS_FactSheet-E_508C.pdf and downloaded on September 28, 2025.

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RADICAVA ORS® is one of the few drug formulations containing one of the remaining three approved APIs for the treatment of ALS.

RADICAVA ORS®

9.

Shionogi is the owner of NDA No. 215446. Through its approval of NDA No. 215446 on May 12, 2022, the FDA granted approval of the first oral suspension formulation containing the edaravone API at a dose concentration of 105 mg/mL, available in the United States and marketed and sold under the trade name RADICAVA ORS®.

10. TPC, the prior owner of the RADICAVA ORS® business and assets and developer of RADICAVA ORS®, invested hundreds of millions of dollars in research and development demonstrating the efficacy and safety of RADICAVA ORS® for the treatment for ALS.

11. Although there is no cure for ALS, RADICAVA ORS® helps slow the progression (i.e., loss of physical function) of the disease in ALS patients by approximately thirty-three percent (33%) as compared to a placebo over the same six-month period. Unlike the prior RADICAVA® intravenous (“IV”) formulation, RADICAVA ORS® can be administered by the patient or caregivers at the convenience of a home setting, either orally or via a feeding tube, and in only a few minutes. There is no need to transport the patient to a healthcare facility for IV injection of RADICAVA®.

12. On March 28, 2024, the FDA granted seven years of Orphan Drug Exclusivity for RADICAVA ORS® for the treatment of ALS based upon the FDA’s assessment that

RADICAVA ORS® constitutes a major contribution to patient care for people living with ALS because it provides patients with the clinically superior option of an oral suspension route of administration, reducing the burden patients faced with IV administration of the previously approved RADICAVA® formulation.

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13.

Pursuant to 21 U.S.C. § 360cc(a)(2) relating to Orphan Drug Exclusivity, the FDA may not approve another application “for the same drug for the same disease or condition for a person who is not the holder of such approved application or of such license until the expiration of seven years from the date of the approval of the approved application or the issuance of the license.”

14. The Orphan Drug Exclusivity for RADICAVA ORS® expires on May 12, 2029.

15. The Patents-in-Suit are listed in the Approved Drug Products With Therapeutic Equivalence Evaluations (“Orange Book”) in connection with NDA No. 215446 for RADICAVA ORS®.

THE PARTIES

16.

Shionogi is a corporation organized and existing under the laws of the State of Delaware, having a place of business at 400 Campus Drive, Florham Park, New Jersey 07932.

17. On information and belief, Zydus USA is a corporation organized and existing under the laws of the State of New Jersey, with a principal place of business at 73 Route 31 North, Pennington, NJ 08534.

18. On information and belief, Zydus Lifesciences is a company organized and existing under the laws of India, with a principal place of business at Zydus Corporate Park, Scheme No. 63, Survey No. 536, Khoraj (Gandhinagar), Nr. Vaishnodevi Circle, S.G., Highway, Ahmedabad 382481, Gujarat, India.

19. On information and belief, Zydus Global FZE is a corporation organized and existing under the laws of the United Arab Emirates (UAE), with a principal place of business at FZJO B2601, Jebel Ali Free Zone Dubai, Dubai, United Arab Emirates.

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20. On information and belief, Zydus is the holder of ANDA No. 220849, seeking FDA approval to market a generic copy of RADICAVA ORS®.
21. On information and belief, Defendant Zydus USA is, directly and/or indirectly, a wholly owned subsidiary of Defendant Zydus Lifesciences.
22. On information and belief, Zydus is in the business of, inter alia, directly or indirectly, developing, manufacturing, marketing, distributing, selling, offering for sale, and/or importing generic versions of branded pharmaceutical products throughout the world, including the United States and the State of New Jersey.
23. On information and belief, Zydus collaborates with respect to the development, regulatory approval, marketing, distribution, and/or sale of generic versions of branded pharmaceutical products in the United States, including in the State of New Jersey.
24. On information and belief, Zydus USA, Zydus Lifesciences, and Zydus Global FZE are agents of one another and/or operate in concert as integrated units of the same corporate group.
25. On information and belief, the acts of , Zydus USA, Zydus Lifesciences, and Zydus Global FZE set forth in this Complaint were done with the cooperation, participation, and assistance of one another.
26. On information and belief, Zydus caused Zydus's ANDA No. 220849 to be submitted to FDA from this district, and seeks FDA approval of Zydus's ANDA to market a generic copy of RADICAVA ORS®.
27. On information and belief, after obtaining FDA approval of Zydus's ANDA No. 220849, Zydus will act cooperatively to distribute, offer to sell, and sell the proposed infringing products described in Zydus's ANDA No. 220849 throughout the United States, including the
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State of New Jersey, consistent with their earlier actions with respect to other generic versions of branded pharmaceutical products.

28. According to the FDA FOIA Request log, available at

<https://www.fda.gov/media/162035/download?attachment>, on August 5, 2022, Zydus USA submitted Freedom of Information Act Request No. 2022-5722 to the FDA for the Summary Basis of Approval for RADICAVA ORS® (edaravone) oral suspension, 105 mg/5mL.

JURISDICTION AND VENUE

29.

Shionogi restates, realleges, and incorporates by reference paragraphs 1–28 as if fully set forth herein.

30. This action arises under the Patent Laws of the United States and the Food and Drug Laws of the United States, Titles 35 and 21, United States Code.

31. This Court has jurisdiction over the subject matter of this action pursuant to 28 U.S.C. §§ 1331, 1338(a).

32. This Court may exercise jurisdiction over Zydus because, on information and belief, Zydus is in the business of manufacturing, marketing, importing and selling pharmaceutical drug products, including generic drug products. On information and belief, Zydus directly, or indirectly, develops, manufactures, markets and sells generic drugs throughout the United States and in this judicial district. On information and belief, Zydus purposefully has conducted and continues to conduct business in this judicial district, and this judicial district is a likely destination of Zydus's generic products.

33. On information and belief, as described in Zydus's notification of ANDA No. 220849 and the certification under 21 U.S.C. § 355(j)(2)(A)(vii)(IV), dated April 21, 2026 ("Zydus's Notice Letter"), Zydus caused ANDA No. 220849 to be submitted to the FDA to seek

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FDA approval of ANDA No. 220849 prior to the expiration of the Patents-in-Suit listed in the Orange Book for RADICAVA ORS®.

34. This Court also has personal jurisdiction over Zydus because Zydus has committed, aided, abetted and participated and/or will commit, will aid, will abet and/or will participate in the commission of acts of patent infringement, including acts in this judicial district, which have led to foreseeable harm and injury to Shionogi in this judicial district.

35. Venue is proper, pursuant to 28 U.S.C. §§ 1391 and/or 1400, in this Court for Zydus USA for reasons stated above and, inter alia, on information and belief, because Zydus USA has a regular and established place of business in New Jersey and has committed acts of infringement in New Jersey.

36. Venue is proper, pursuant to 28 U.S.C. §§ 1391 and/or 1400, in this Court for Zydus Lifesciences for reasons stated above and, inter alia, on information and belief, because Zydus Lifesciences is a foreign corporation and may be sued in any judicial district in the United States.

37. Venue is proper, pursuant to 28 U.S.C. §§ 1391 and/or 1400, in this Court for Zydus Global FZE for reasons stated above and, inter alia, on information and belief, because Zydus Global FZE is a foreign corporation and may be sued in any judicial district in the United States.

THE PATENTS-IN-SUIT

38.

Shionogi owns the '611 patent, which was duly and legally issued on November 25, 2025, and is entitled "Pharmaceutical composition for oral administration of edaravone and method of administering same." A copy of the '611 patent is attached as Exhibit A.

39.

Shionogi owns the '769 patent, which was duly and legally issued on January 20, 2026, and is entitled "Pharmaceutical composition for oral administration of edaravone and method of administering same." A copy of the '769 patent is attached as Exhibit B.

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40.

Shionogi owns the '469 patent, which was duly and legally issued on March 10, 2026, and is entitled "Pharmaceutical composition for oral administration of edaravone and method of administering same." A copy of the '469 patent is attached as Exhibit C.

DEFENDANTS' ANDA

41. On information and belief, Zydus submitted to the FDA, and continues to maintain, its abbreviated ANDA No. 220849 relying upon the RADICAVA ORS® data for FDA approval.

42. On information and belief, Zydus seeks approval of ANDA No. 220849 for a proposed edaravone suspension, administered at a dose concentration of 105 mg/5 mL.

43. On information and belief, ANDA No. 220849 identifies RADICAVA ORS® as the reference listed drug ("RLD").

44. On information and belief, Zydus seeks FDA approval of ANDA No. 220849 to engage in the commercial manufacture, use, sale, offer for sale and/or importation of its proposed edaravone suspension as a proposed generic copy of RADICAVA ORS®.

45. On information and belief, the FDA has not approved ANDA No. 220849.

46. On information and belief, Zydus sent Shionogi a letter ("Zydus's Notice Letter"), purporting to include "Zydus's Detailed Factual and Legal Bases in Support of its Paragraph IV Certification for Edaravone Oral Suspension, 105 mg/mL." Zydus's Notice Letter stated that

Zydus had filed ANDA No. 220849, seeking approval to manufacture, use, import, offer to sell and/or sell Zydus's generic products before the expiration of the Patents-in-Suit.

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CLAIMS FOR RELIEF

COUNT 1: INFRINGEMENT OF THE '611 PATENT

47.

Shionogi restates, realleges, and incorporates by reference paragraphs 1–46 as if fully set forth herein.

48. On information and belief, Zydus submitted and/or caused the submission of ANDA No. 220849 to the FDA, seeking approval of Zydus's proposed edaravone product in the United States prior to the expiration of the '611 patent.

49. On information and belief, Zydus's proposed edaravone product infringes, literally and/or under the doctrine of equivalents, one or more claims of the '611 patent, including at least Independent Claim 1 of the '611 patent. For example, on information and belief, differences, if any, between the features of Zydus's proposed edaravone product and the claims of the '611 patent are insubstantial, and Zydus's proposed edaravone product performs substantially the same function in substantially the same way to obtain the same result as the methods and/or products claimed in the '611 patent.

50. On information and belief, Zydus has infringed one or more claims of the '611 patent, including at least Independent Claim 1, by actively inducing infringement pursuant to 35 U.S.C. § 271(b), because Zydus's proposed labeling instructs, encourages, and/or promotes the administration by physicians, patients, and/or healthcare providers of an edaravone oral suspension in accordance with the claimed methods of at least Independent Claim 1 of the '611 patent, thereby inducing infringement.

51. Zydus has infringed, pursuant to 35 U.S.C. § 271(e)(2), literally and/or under the doctrine of equivalents, one or more claims of the '611 patent by submitting ANDA No. 220849

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with Zydus's Notice Letter, seeking approval of Zydus's proposed edaravone product prior to the expiration of the '611 patent listed in the FDA Orange Book.

52. On information and belief, Zydus intends to and will engage in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United

States, of Zydus's proposed edaravone product upon receipt of final FDA approval of ANDA No. 220849.

53. On information and belief, the importation, manufacture, offer to sell, sale, or use of Zydus's proposed edaravone product in the United States prior to the expiration of the '611 patent will infringe, literally and/or under the doctrine of equivalents, one or more claims of the '611 patent under 35 U.S.C. §§ 271(a), (b) and/or (c).

54. Upon information and belief, Zydus was aware of the '611 patent prior to amending ANDA No. 220849 to add § 505(j)(2)(A)(vii)(IV) allegations with respect to that patent. Upon information and belief, Zydus's proposed edaravone product and method of using Zydus's proposed edaravone product will induce others – e.g., doctors, pharmacists, healthcare providers, and patients, according to the proposed package insert – to infringe the '611 patent and Zydus possess the specific intent to induce and encourage others to infringe that patent.” On information and belief, Zydus amended ANDA No. 220849 to add § 505(j)(2)(A)(vii)(IV) allegations despite an objectively high likelihood that its submission constituted infringement of a valid patent, and this risk was either known to Zydus or so obvious that it should have been known.

55.

Shionogi is entitled to entry of an order, pursuant to 35 U.S.C. § 271(e)(4), that the effective date of the FDA approval of ANDA No. 220849 be a date that is not earlier than the expiration date of the '611 patent or the later expiration of any patent term extension and/or patent

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term adjustment and any additional periods of exclusivity for the '611 patent to which Shionogi is or becomes entitled.

56.

Shionogi is entitled to a declaration that, if Zydus commercially manufactures, uses, offers for sale, or sells Zydus's proposed edaravone product within the United States, or imports Zydus's proposed edaravone product into the United States, or induces or contributes to such activities, Zydus will infringe one or more claims of the '611 patent under 35 U.S.C. §§ 271(a), (b) and (c).

57.

Shionogi will be irreparably harmed if Zydus is not enjoined from Zydus's activities infringing the '611 patent. Shionogi does not have an adequate remedy and an award of

damages would not make Shionogi whole.

COUNT 2: INFRINGEMENT OF THE '769 PATENT

58.

Shionogi restates, realleges, and incorporates by reference paragraphs 1–57 as if fully set forth herein.

59. On information and belief, Zydus submitted and/or caused the submission of ANDA No. 220849 to the FDA, seeking approval of Zydus's proposed edaravone product in the United States prior to the expiration of the '769 patent.

60. On information and belief, Zydus's proposed edaravone product infringes, literally and/or under the doctrine of equivalents, one or more claims of the '769 patent, including at least Independent Claim 1 of the '769 patent. For example, on information and belief, differences, if any, between the features of Zydus's proposed edaravone product and the claims of the '769 patent are insubstantial, and Zydus's proposed edaravone product performs substantially the same function in substantially the same way to obtain the same result as the methods and/or products claimed in the '769 patent.

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61. On information and belief, Zydus has infringed one or more claims of the '769 patent, including at least Independent Claim 1, by actively inducing infringement pursuant to 35 U.S.C. § 271(b), because Zydus's proposed labeling instructs, encourages, and/or promotes the administration by physicians, patients, and/or healthcare providers of an edaravone oral suspension in accordance with the claimed methods of at least Independent Claim 1 of the '769 patent, thereby inducing infringement.

62. Zydus has infringed, pursuant to 35 U.S.C. § 271(e)(2), literally and/or under the doctrine of equivalents, one or more claims of the '769 patent by submitting ANDA No. 220849 with Zydus's Notice Letter, seeking approval of Zydus's proposed edaravone product prior to the expiration of the '769 patent listed in the FDA Orange Book.

63. On information and belief, Zydus intends to and will engage in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of Zydus's proposed edaravone product upon receipt of final FDA approval of ANDA No. 220849.

64. On information and belief, the importation, manufacture, offer to sell, sale, or use

of Zydus's proposed edaravone product in the United States prior to the expiration of the '769 patent will infringe, literally and/or under the doctrine of equivalents, one or more claims of the '769 patent under 35 U.S.C. §§ 271(a), (b) and/or (c).

65. Upon information and belief, Zydus was aware of the '769 patent prior to amending ANDA No. 220849 to add § 505(j)(2)(A)(vii)(IV) allegations with respect to that patent. Upon information and belief, Zydus's proposed edaravone product and method of using Zydus's proposed edaravone product will induce others – e.g., doctors, pharmacists, healthcare providers, and patients, according to the proposed package insert – to infringe the '769 patent and Zydus

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possess the specific intent to induce and encourage others to infringe that patent.” On information and belief, Zydus amended ANDA No. 220849 to add § 505(j)(2)(A)(vii)(IV) allegations despite an objectively high likelihood that its submission constituted infringement of a valid patent, and this risk was either known to Zydus or so obvious that it should have been known.

66.

Shionogi is entitled to entry of an order, pursuant to 35 U.S.C. § 271(e)(4), that the effective date of the FDA approval of ANDA No. 220849 be a date that is not earlier than the expiration date of the '769 patent or the later expiration of any patent term extension and/or patent term adjustment and any additional periods of exclusivity for the '769 patent to which Shionogi is or becomes entitled.

67.

Shionogi is entitled to a declaration that, if Zydus commercially manufactures, uses, offers for sale, or sells Zydus's proposed edaravone product within the United States, or imports Zydus's proposed edaravone product into the United States, or induces or contributes to such activities, Zydus will infringe one or more claims of the '769 patent under 35 U.S.C. §§ 271(a), (b) and (c).

68.

Shionogi will be irreparably harmed if Zydus is not enjoined from Zydus's activities infringing the '769 patent. Shionogi does not have an adequate remedy and an award of damages would not make Shionogi whole.

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COUNT 3: INFRINGEMENT OF THE '469 PATENT

69.

Shionogi restates, realleges, and incorporates by reference paragraphs 1–68 as if fully set forth herein.

70. On information and belief, Zydus submitted and/or caused the submission of ANDA No. 220849 to the FDA, seeking approval of Zydus's proposed edaravone product in the United States prior to the expiration of the '469 patent.

71. On information and belief, Zydus's proposed edaravone product infringes, literally and/or under the doctrine of equivalents, one or more claims of the '469 patent, including at least Independent Claim 1 of the '469 patent. For example, on information and belief, differences, if any, between the features of Zydus's proposed edaravone product and the claims of the '469 patent are insubstantial, and Zydus's proposed edaravone product performs substantially the same function in substantially the same way to obtain the same result as the methods and/or products claimed in the '469 patent.

72. On information and belief, Zydus has infringed one or more claims of the '469 patent, including at least Independent Claim 1, by actively inducing infringement pursuant to 35 U.S.C. § 271(b), because Zydus's proposed labeling instructs, encourages, and/or promotes the administration by physicians, patients, and/or healthcare providers of an edaravone oral suspension in accordance with the claimed methods of at least Independent Claim 1 of the '469 patent, thereby inducing infringement.

73. Zydus has infringed, pursuant to 35 U.S.C. § 271(e)(2), literally and/or under the doctrine of equivalents, one or more claims of the '469 patent by submitting ANDA No. 220849 with Zydus's Notice Letter, seeking approval of Zydus's proposed edaravone product prior to the expiration of the '469 patent listed in the FDA Orange Book.

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74. On information and belief, Zydus intends to and will engage in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of Zydus's proposed edaravone product upon receipt of final FDA approval of ANDA No. 220849.

75. On information and belief, the importation, manufacture, offer to sell, sale, or use of Zydus's proposed edaravone product in the United States prior to the expiration of the '469

patent will infringe, literally and/or under the doctrine of equivalents, one or more claims of the '469 patent under 35 U.S.C. §§ 271(a), (b) and/or (c).

76. Upon information and belief, Zydus was aware of the '469 patent prior to amending ANDA No. 220849 to add § 505(j)(2)(A)(vii)(IV) allegations with respect to that patent. Upon information and belief, Zydus's proposed edaravone product and method of using Zydus's proposed edaravone product will induce others – e.g., doctors, pharmacists, healthcare providers, and patients, according to the proposed package insert – to infringe the '469 patent and Zydus possess the specific intent to induce and encourage others to infringe that patent.” On information and belief, Zydus amended ANDA No. 220849 to add § 505(j)(2)(A)(vii)(IV) allegations despite an objectively high likelihood that its submission constituted infringement of a valid patent, and this risk was either known to Zydus or so obvious that it should have been known.

77.

Shionogi is entitled to entry of an order, pursuant to 35 U.S.C. § 271(e)(4), that the effective date of the FDA approval of ANDA No. 220849 be a date that is not earlier than the expiration date of the '469 patent or the later expiration of any patent term extension and/or patent term adjustment and any additional periods of exclusivity for the '469 patent to which Shionogi is or becomes entitled.

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78.

Shionogi is entitled to a declaration that, if Zydus commercially manufactures, uses, offers for sale, or sells Zydus's proposed edaravone product within the United States, or imports Zydus's proposed edaravone product into the United States, or induces or contributes to such activities, Zydus will infringe one or more claims of the '469 patent under 35 U.S.C. §§ 271(a), (b) and (c).

79.

Shionogi will be irreparably harmed if Zydus is not enjoined from Zydus's activities infringing the '469 patent. Shionogi does not have an adequate remedy and an award of damages would not make Shionogi whole.

PRAYER FOR RELIEF

WHEREFORE, Shionogi respectfully requests the following relief:

A. A judgment that Defendants have infringed the Patents-in-Suit pursuant to 35

U.S.C. § 271(e)(2) by submitting ANDA No. 220849 to the FDA seeking approval of Defendants' proposed edaravone product prior to the expiration of one or more claims of the Patents-in-Suit;

B. A judgment that the commercial manufacture, use, offer to sell, or sale within the United States, and/or importation into the United States, of Defendants' proposed edaravone product described in ANDA No. 220849 will infringe, induce, and/or contribute to the infringement of one or more claims of the Patents-in-Suit;

C. An order issued pursuant to 35 U.S.C. § 271(e)(4)(A) that the effective date of any FDA approval of ANDA No. 220849 be a date not earlier than the expiration date of the Patents-in-Suit, including any patent term extensions and/or patent term adjustments and any additional periods of exclusivity to which Shionogi is or becomes entitled;

D. An order preliminarily and permanently restraining and enjoining Defendants, Defendants' directors, officers, agents, attorneys, affiliates, divisions, successors, and employees,

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and those acting in privity or concert with Defendants, from engaging in the commercial manufacture, use, offer for sale, or sale within the United States, and/or importation into the United States, of any drug product, or the use thereof, claimed in the Patents-in-Suit, before the expiration date of the Patents-in-Suit, including any patent term extension and/or patent term adjustment and any periods of exclusivity, including Orphan Drug Exclusivity, to which Shionogi is or becomes entitled;

E. A declaration that this is an exceptional case and an award to Shionogi of its reasonable expenses, including attorneys' fees pursuant to 35 U.S.C. § 285;

F.

An award to Shionogi of costs incurred in this action; and

G.

Such other and further relief as the Court may deem just and proper.

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Dated: June 5, 2026

Newark, New Jersey

s/ William P. Deni., Jr.

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